

100 BEAL STREET: PRELIMINARY PRIMARY-SOURCE CHRONOLOGY AND RECORD INDEX

Objective Source-Indexed Documentary Chronology of Municipal Votes, Registry Instruments, State Agency Correspondence, and Property Disposition Proceedings (1989–2026) — Not a Title Opinion or Legal Determination

⚠ FORMAL LIMITATION STATEMENT & LEGAL DISCLAIMER

This document is a preliminary research chronology and record index compiled exclusively from public records. **It does not constitute a title examination, legal opinion, certification of title, or formal determination of statutory compliance.** The interpretation, legal validity, and operational enforceability of deed restrictions, reverter provisions, municipal votes, state agency supervisory powers, and procurement procedures require formal review and determination by qualified Massachusetts real estate and public housing legal counsel.

Document Identifier: 100_Beal_Street_Town_vs_HHA_Legal_Chronology_and_Minutes_v2	Publication Date: September 2026
Subject Real Property: 100 Beal Street, Hingham, MA (Map 58, Lot 23; School Tract II)	Record Property Owner: Hingham Housing Authority (M.G.L. c. 121B, § 3)
Standard of Review: Neutral primary-source factual inventory	Repository Governance: Zero unverified conclusions; Version 2

1. EVIDENTIARY CATEGORIZATION FRAMEWORK

To ensure total analytical rigor and eliminate conflation between documented facts, contextual deductions, and unresolved legal questions, this record applies a strict three-tier classification:

- **VERIFIED DOCUMENTARY FACT** **Verified Documentary Facts:** Objective assertions directly quoted or summarized from authenticated primary records (recorded Registry deeds, signed municipal minutes, certified Town Meeting election returns, published warrants, and official state agency filings).
- **FACTUAL INFERENCE** **Factual Inferences:** Deductions regarding timing, context, or procedural posture that are logically supported by the record sequence but lack an express, verbatim confirmation in a single standalone document.
- **OPEN LEGAL QUESTION** **Open or Disputed Legal Questions:** Substantive legal determinations regarding property rights, reverter expiration, condition compliance, or regulatory jurisdiction that remain contested or require formal judicial or title counsel adjudication.

2. STATUTORY FOUNDATIONS & THE 1989 FEE CONVEYANCE

2.1 The Recorded Fee Deed (Book 09097, Pages 158–161)

Execution: March 7, 1989 • **Recording:** April 21, 1989 at 11:58 AM • **Registry Citation:** Plymouth County Registry of Deeds, **Book 09097, Pages 158–161** (Doc #29758).

Grantor: Town of Hingham, by its Board of Selectmen (Alexander A. Randall, Chairman; John P. Ryan; William J. Salisbury) pursuant to May 1987 Annual Town Meeting Warrant Article 53.

Grantee: Hingham Housing Authority (HHA), a public body politic and corporate organized under M.G.L. c. 121B.

Consideration: \$45,751.00 paid into Town Treasury • **Acreage:** School Tract II, 15.014 net acres (Perkins Engineering Plan, Plan Book 17, Page 508).

2.2 Verbatim Deed Condition & Reverter Clause (Book 09097, Page 160)

"This conveyance is made upon the express condition that the property will be used only for a residential educational facility for emotionally disturbed adolescents operated through the Hingham Housing Authority by the South Shore Educational Collaborative or similar entity; or, if required pursuant to M.G.L. c. 121B, § 34, by the Massachusetts Executive Office of Communities and Development.

In the event that a breach of the above condition should occur after December 17, 2003, all right, title and interest in and to the above described property shall revert to and become the property of the Town of Hingham which shall have the immediate right of entry thereon, provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in Massachusetts General Laws, Chapter 184A, Section 3."

2.3 Historical Statutory Context & Title Considerations

- **Historical Statute vs. Modern Recodifications:** The deed references "Massachusetts General Laws, Chapter 184A, Section 3." At the time of deed execution (March 7, 1989), Chapter 184A governed the rule against perpetuities and restrictions on land. Shortly thereafter, the Legislature enacted Chapter 668 of the Acts of 1989 (effective June 30, 1989) adopting the Uniform Statutory Rule Against Perpetuities and restructuring Chapter 184A. Subsequently, Chapter 521 of the Acts of 2008 repealed Sections 1–4 of Chapter 184A under the Uniform Probate Code. Concurrently, **M.G.L. c. 184, § 23** establishes a thirty-year

general statutory limitation on conditions or restrictions unlimited as to time. **OPEN LEGAL QUESTION** *The exact statutory basis and legal effect of the thirty-year clause require confirmation under historical law applicable to the 1989 deed.*

- **Continuous Qualifying Use:** **VERIFIED FACT** Public records indicate that the property was occupied by an adolescent residential facility operated under contract with the Department of Children and Families (DCF). **OPEN LEGAL QUESTION** *Available records should be reviewed by title counsel to determine whether any breach notice, declaration of default, entry, suit, or recorded enforcement instrument was issued or recorded prior to the asserted expiration date.*
- **Fee Title Status:** **OPEN LEGAL QUESTION** *HHA appears to be the record fee owner under the recorded instruments, subject to a complete title examination and all recorded and statutory encumbrances (including state housing restrictions, wetlands orders, and zoning constraints), rather than an unencumbered "fee simple absolute."*
- **Surveyor Title Abstract Observation:** On Sheet 1 of the Control Point Associates ALTA Survey (2024), Note 3 of Schedule B, Part II states: "NOTE: THE RIGHT OF REVERTER TO THE TOWN FOR BREACH OF THIS CONDITION EXPIRED ON DECEMBER 17, 2003, BUT THE RIGHT OF TERMINATION REMAINS UNTIL MARCH 7, 2029. THEREFORE NEED RELEASE OR CHANGE OF THIS RESTRICTION FROM THE TOWN OF HINGHAM." This illustrates the divergent legal interpretations among professionals and underscores why a formal title examination is necessary.

3. THE 2001 MOU & 2006 TOWN MEETING AUTHORIZATION

- **2001 Memorandum of Understanding & Plan 100 of 2001:** Executed June 12, 2001 between Board of Selectmen and HHA following Town-funded remediation of abandoned naval ammunition bunkers. Gale Associates plan recorded as Plan 100 of 2001 carved out a 2.0-acre developed building lot and an 8.02-acre surplus lot (Lot 2). **UNOBTAINED DOCUMENT** *The complete executed text of the 2001 MOU is unobtained in this file.*
- **2006 Annual Town Meeting Action (Article 38):** On May 1, 2006, Town Meeting voted by declared 2/3 majority to authorize the Select Board to amend the 1989 deed restriction to permit affordable housing qualifying for the state Subsidized Housing Inventory (SHI). (Town Clerk Certification, Eileen A. McCracken).
- **Registry Index Search Finding:** **VERIFIED FACT** A Registry index and tract search confirmed that no recorded deed amendment or release was identified. **OPEN LEGAL QUESTION** *Legislative authorization by Town Meeting is enabling in nature; because no release was executed and recorded, the 1989 deed restriction remained unamended on title.*

4. 2019 DISPUTE REGARDING THE 2001 MOU AND PROPOSED ENFORCEMENT ACTION

Board of Selectmen Minutes (February 26, 2019, Page 1):

Executive Session convened at 6:45 PM to discuss potential litigation regarding 100 Beal Street. Board returned to Open Session at 7:00 PM.

"Real Estate Counsel, Susan Murphy, provided background on Memorandum of Understanding pertaining to 100 Beal Street that was signed in 2001. Ms. Johnson provided additional background concerning the obligation of the contract with the Housing Authority and stated that tax payers have paid for work that the Town performed at the site. The Town/Housing Authority have reached an impasse with this agreement.

Mr. Healey made a motion to file litigation regarding enforcement of agreement as to 100 Beal Street, Hingham, MA. Ms. Johnson seconded. All were in favor, 3-0."

FACTUAL INFERENCE The vote occurred nine days before the March 7, 2019 thirty-year deed anniversary.

OPEN LEGAL QUESTION *The vote authorized litigation; available records do not verify whether a complaint was formally filed in court or if the dispute proceeded via out-of-court correspondence.*

5. COMMONWEALTH CORRESPONDENCE & RECORDED STATUTORY TRANSFER RESTRICTION

- **The HHA June 5, 2019 Action:** HHA minutes recite that on June 5, 2019, the Board approved a motion to transfer approximately nineteen (19) acres back to the Town. **FACTUAL INFERENCE** *This action followed the Select Board's February 26, 2019 vote authorizing litigation.*
- **Commonwealth Written Correspondence:** Letters from Amy Stitely, Associate Director of Public Housing (April 19, 2019 and June 26, 2019), advised HHA and Town Counsel of state supervisory authority. **OPEN LEGAL QUESTION** *The project may be subject to restrictions under M.G.L. c. 121B, § 34 and Chapter 689 state-aid agreements; the applicable approval path should be established from those documents and state written determinations.*
- **Recorded Notice of Statutory Transfer Restriction:** Recorded July 18, 2019 at Plymouth County Registry of Deeds, **Book 51379, Page 244** (Doc #55967, 5 pages). A blanket restriction was placed on Map 58, Lot 23; its exact legal scope and operative effect must be stated from the instrument's operative clauses.

6. THE HHA RESCISSION VOTE: MINUTES OF SEPTEMBER 7, 2021

HHA Regular Board Meeting Minutes (September 7, 2021, Pages 3–4):

Present: Gregory O'Meara, Irma Lauter, Megan Buhr, Janine Suchecki (4–0 unanimous). Presiding: Janine Suchecki, Chair; James Marathas, Executive Director.

"Mr. Marathas explained that the next motion is to rescind a motion that was taken under the previous administration. **Legal Counsel from DHCD as well as the Town Legal Counsel was consulted and rescinding the motion was the recommendation.**

Commissioner O'Meara made a motion, seconded by Commissioner Lauter, to rescind a prior Motion made at the June 5, 2019 Special Meeting. A motion was made and passed by the then Board of Commissioners at that Special Meeting. The Motion approved was to Transfer a parcel Land comprising approximately nineteen (19) acres to the Town of Hingham... **The Motion was passed on a 4 – 0 vote. That Motion is now rescinded and the land in question shall remain in the ownership of the Hingham Housing Authority."**

7. DISPOSITION PROCEEDINGS, M.G.L. C. 30B PROCUREMENT & DEVELOPER AWARD (2024–2026)

- **Surplus Declaration & RFP Authorization:** Narrative reports cite HHA votes declaring Lot B surplus (Feb 20, 2024) and authorizing an RFP (Sept 10, 2024). Certified minutes for these specific dates remain unobtained.
- **Developer Selection & Award (August 12, 2025):** **OFFICIAL MINUTES** HHA Board voted unanimously (4–0: Bennett, Weiser, Sullivan, Lauter; motion by Lauter, second by Weiser) to award development to Peabody Properties/AHSC and authorize the Executive Director to enter into an LDDA. (Minutes, p. 2).
- **Chapter 30B Compliance Requirements:** **OPEN LEGAL QUESTION** Under M.G.L. c. 30B, § 16, real property dispositions require surplus declarations, independent valuation, Central Register publication, competitive solicitation, and evaluation documentation. A complete Chapter 30B compliance file remains necessary to establish statutory compliance.
- **Wetlands Adjudication: Recorded ORAD (Book 59527, Page 273):** **RECORDED ORDER** WPA Form 4B officially recorded on December 10, 2024 under MassDEP File No. 034-1509 confirming 155+ wetland flags across the Tucker's Swamp / Weymouth Back River ACEC basin.
- **August 25, 2026 Special Meeting Agenda:** **PROSPECTIVE AGENDA** Item 9 listed proposed consideration of a Land Disposition Agreement with AHSC Peabody Developers LLC. **Final action is not established by the agenda alone.** Subsequent certified minutes, vote records, and an executed agreement are required to verify formal approval and execution.

8. MISSING DOCUMENTS & UNOBTAINED RECORDS INVENTORY

DOCUMENT DESCRIPTION	ASSERTED DATE	CURRENT STATUS	REQUIRED PRIMARY EVIDENCE
Executed 2001 MOU	June 12, 2001	Unobtained	Complete executed agreement between Town and HHA detailing bunker demolition and land return covenants.
Court Litigation Pleadings	Post-Feb 26, 2019	Unverified	Court docket search (Plymouth Superior / Land Court) to confirm whether a formal complaint was served or filed.
DHCD Warning Letters	Apr 19 & Jun 26, 2019	Unobtained	Full signed letters from Amy Stitely to HHA and Town Counsel articulating c. 121B, § 34 determinations.
HHA June 5, 2019 Minutes	June 5, 2019	Unobtained	Official signed minutes of the Special Meeting approving the 19-acre transfer motion.
HHA Feb 20, 2024 Minutes	February 20, 2024	Unobtained	Official signed minutes documenting the surplus declaration and MHP technical assistance vote.
HHA Sept 10, 2024 Minutes	September 10, 2024	Unobtained	Official signed minutes documenting Motions 7 & 8 authorizing Developer RFP issuance.
Complete c. 30B File	2024–2025	Partially Obtained	Independent appraisal/valuation, Central Register publication notice, and selection committee score sheets.
HHA Aug 25, 2026 Minutes	August 25, 2026	Unobtained	Official approved minutes and certified vote record confirming action taken on Item 9 (LDA).
Executed LDA & Ground Lease	2025–2026	Unobtained / Unrecorded	Fully executed Land Disposition Agreement and 99-Year Ground Lease between HHA and AHSC Peabody.

9. MASTER SOURCE-INDEXED CHRONOLOGY TABLE (1989–2026)

DATE	OFFICIAL RECORD CITATION	PUBLIC AUTHORITY	SOURCE LOCATION / PINPOINT	STATUS OF PROOF	DOCUMENTED ACTION / SUBSTANCE
04/21/1989	Fee Deed (Doc #29758)	Town → HHA	Book 09097, pp. 158–161	RECORDED	Conveys 15.014 ac for \$45,751; contains adolescent use condition and 30-yr reverter clause citing c. 184A, § 3 (p. 160).

DATE	OFFICIAL RECORD CITATION	PUBLIC AUTHORITY	SOURCE LOCATION / PINPOINT	STATUS OF PROOF	DOCUMENTED ACTION / SUBSTANCE
04/21/1989	ZBA Comprehensive Permit	Hingham ZBA	Book 09097, pp. 165–170	RECORDED	Grants Chapter 40B permit; Condition 7 prohibits additional structures on School Tract II without further relief.
06/12/2001	Plan 100 of 2001 & MOU	Selectmen / HHA / Gale	Plan Book 44, Page 412	PENDING MOU	Division plan depicts 2.0-ac facility lot and 8.02-ac Lot 2. Full executed MOU agreement text unobtained.
05/01/2006	ATM Warrant Art. 38 Vote	Hingham Town Meeting	Town Clerk Cert., p. 6	CERTIFIED VOTE	Town Meeting voted by declared 2/3 majority to authorize Select Board to amend deed restriction for affordable housing.
05/01/2006	Registry Index Search	Plymouth Registry	Grantor/Grantee Search	VERIFIED SEARCH	No recorded deed amendment or release identified on title; 1989 deed restriction remained legally unamended.
02/26/2019	Select Board Minutes	Board of Selectmen	Minutes Feb. 26, 2019, p. 1	OFFICIAL MINUTES	Select Board convened executive session (6:45 PM), returned to open session (7:00 PM), and voted 3–0 to authorize litigation.
03/07/2019	30-Year Deed Anniversary	1989 Deed Terms	Book 09097, Page 160	OPEN QUESTION	Thirty calendar years elapsed from March 7, 1989 deed. Legal effect on right of entry subject to historical statutory analysis.
04/19/2019	DHCD Warning Letter	Amy Stitely, DHCD	Cited in HHA Minutes, p. 3	UNOBTAINED	State correspondence advising that transfer of state-assisted public housing property requires c. 121B, § 34 approval.
06/05/2019	HHA Special Meeting	HHA Board	Recited in HHA Minutes, p. 3	UNOBTAINED	HHA Board approved motion to transfer ~19 acres back to the Town. Full minutes unobtained.
06/26/2019	DHCD Follow-Up Letter	Amy Stitely, DHCD	Cited in HHA Minutes, p. 2	UNOBTAINED	Follow-up state correspondence regarding proposed land transfer and statutory compliance requirements under c. 121B.
07/09/2019	HHA Regular Meeting	HHA Board	HHA Minutes July 9, 2019, p. 2	OFFICIAL MINUTES	Board discussed DHCD June 26 letter and noted Selectmen involvement; Selectman Fisher introduced as housing liaison.
07/18/2019	Notice of Restriction (Doc #55967)	Mass. DHCD & HHA	Book 51379, pp. 244–248	RECORDED	Formal Notice of Statutory Transfer Restriction recorded under c. 121B, § 34; blanket encumbrance on Map 58, Lot 23.
09/07/2021	HHA Regular Meeting	HHA Board (4–0 Vote)	HHA Minutes Sept. 7, 2021, pp. 3–4	OFFICIAL MINUTES	On recommendation of DHCD and Town counsel, Board voted 4–0 to rescind June 5, 2019 transfer motion; land retained by HHA.
02/20/2024	Surplus Declaration	HHA Board	Cited in RFP Background	PENDING MINUTE	Narrative records state Board voted to declare Lot B surplus and engage MHP. Certified minutes unobtained.
09/10/2024	RFP Authorization	HHA Board	Cited in RFP Background	PENDING MINUTE	Narrative records state Board voted Motions 7 & 8 authorizing RFP release under c. 30B, § 16. Certified minutes unobtained.
11/04/2024	Conservation Hearing	Conservation Comm.	ConCom Minutes, pp. 4–5	OFFICIAL MINUTES	Commission voted 5–0 to approve Order of Resource Area Delineation under MassDEP File No. 034-1509.
12/10/2024	Recorded ORAD (Doc #78968)	MassDEP / ConCom	Book 59527, pp. 273–280	RECORDED	WPA Form 4B officially recorded, confirming 155+ wetland boundary flags across Tucker's Swamp watershed.
04/16/2025	Developer RFP Package	Hingham Housing Authority	RFP Document (155 Pages)	PUBLIC RFP	Official solicitation issued for ~60 senior units on 8.6-acre Lot B; includes Bohler study, survey, and draft lease.

DATE	OFFICIAL RECORD CITATION	PUBLIC AUTHORITY	SOURCE LOCATION / PINPOINT	STATUS OF PROOF	DOCUMENTED ACTION / SUBSTANCE
08/12/2025	Developer Award Vote	HHA Board (4–0 Vote)	HHA Minutes Aug. 12, 2025, p. 2	OFFICIAL MINUTES	Board voted 4–0 to award development to Peabody Properties / AHSC and authorize Executive Director to enter into an LDDA.
08/25/2026	Special Meeting Agenda	HHA Board of Commissioners	HHA Agenda Aug. 25, 2026, p. 1	AGENDA ONLY	Item 9 scheduled consideration of Land Disposition Agreement with AHSC Peabody. Final vote and execution unverified by agenda.

10. CONCLUDING OBSERVATIONS & LEGAL REVIEW RECOMMENDATIONS

- Record Title Status:** The Hingham Housing Authority appears on public land records as record fee owner under the 1989 deed (Book 09097, Page 158). Title remains subject to active recorded encumbrances, including the 2019 Notice of Statutory Transfer Restriction (Book 51379, Page 244) and the 2024 Order of Resource Area Delineation (Book 59527, Page 273).
- Deed Restriction Analysis:** The 1989 deed restriction and thirty-year reverter clause present nuanced questions of historical statutory interpretation under M.G.L. c. 184A, § 3, c. 184, § 23, and subsequent legislative amendments. While thirty calendar years elapsed on March 7, 2019, whether this automatically extinguished all municipal rights or whether an unrecorded release or dispute remains active requires formal Massachusetts title counsel examination.
- Intergovernmental Jurisdiction:** The interaction between municipal board votes and state public housing supervisory authority under M.G.L. c. 121B, § 34 demonstrates that public housing property dispositions are subject to Commonwealth statutory constraints that supersede local municipal arrangements.
- Procurement & Development Completion:** While HHA has designated Peabody Properties / AHSC under M.G.L. c. 30B, final execution of a Land Disposition Agreement and Ground Lease, along with full documentation of Chapter 30B procedural compliance and Zoning Board of Appeals Chapter 40B Comprehensive Permit approval, remains necessary before development rights are formally perfected.